

Department of the Air Force: Justification for Other Than Full and Open Competition

Dollar Value of this Acquisition: ☐ ≤ \$10M ☒ > \$10M and ≤ \$100M ☐ > \$100M and ≤ \$500M ☐ > \$500M

CERTIFICATIONS: CO certification serves as J&A approval ≤ \$10M, *See **J&A Template Guidance** at <https://usaf.dps.mil/sites/AFCC/AQCP/KnowledgeCenter/SitePages/DAF-Contracting-Compass/Part-6---Competition-Requirements.aspx#exceptions-to-full-and-open-competition-mandatory> J&A Template Guidance tab*

COORDINATION

APPROVALS (RFO 6.104-2(a) Table 6-1 & R-DFARS 206.104-72 Table 206.1)

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I. Agency and Contracting Activity (RFO 6.104-1(a)(1)):

Agency: AFMC

Contracting Activity: DAF PAE C3BM/C3K

Justification for other than Full and Open Competition, IAW RFO 6.103-2, Unusual and Compelling Urgency

II. Nature and/or description of the action being approved (RFO 6.104-1(a)(2)):

This document approves the award of a contract on a sole source basis to Baxter Aerospace for Tactical Airborne Communication Kits (TACKit), TACKit Field Service Representatives (FSRs) and subscriptions in support of Air Force aircraft [REDACTED]. This justification is made on an individual basis. Due to unusual and compelling urgency, an Undefined Contract Action (UCA) was already awarded on [REDACTED] for this effort IAW RFO 6.103-2. This J&A supports the prior award of the UCA and its future definitization, anticipated no later than [REDACTED].

III. Description of supplies/services required to meet agency needs (RFO 6.104-1(a)(3)):

The USAF immediately requires a [REDACTED] capability for a minimum of [REDACTED]. Due to the unusual and compelling urgency of the USAF requirement, C3BM awarded an undefined contract action (UCA) to Baxter Aerospace for manufacture and installation of TACKits, including digital subscriptions required to operate each kit and field support services to sustain the kits for a period not to exceed [REDACTED].

[REDACTED] are outfitted with [REDACTED]

TACKit provides the [REDACTED] on the schedule that Operation Epic Fury requires. TACKit is comprised of [REDACTED]

[REDACTED] Each TACKit requires a [REDACTED] for kit operation. Additionally, field service representatives (FSRs) are required to support operators during the familiarization phase of deployment, overseeing USAF flight-line installation of the kits on aircraft, providing initial training, and then sustaining the systems in operation for a period not to exceed [REDACTED].

On [REDACTED] due to unusual and compelling urgency, the USAF awarded a Firm Fixed Price (FFP) UCA to Baxter to manufacture and deliver the TACKits that the USAF immediately needs to support Operation Epic Fury, including digital subscriptions and field support service not to exceed [REDACTED]. The estimated value for this effort is Not-to-Exceed [REDACTED] inclusive of all options. The value of each individual kit is not anticipated to exceed [REDACTED]. The UCA was awarded with a base requirement to design and deliver [REDACTED]. The UCA includes options to procure up to [REDACTED]. The USAF anticipates exercising those options as early as May 2026. Additionally, the UCA included an option to procure up to [REDACTED]. On [REDACTED] the USAF exercised the option for [REDACTED]. The USAF anticipates definitizing the UCA at or below the Not-to-Exceed value by [REDACTED].

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IV. Statutory Authority Permitting Other Than Full and Open Competition (RFO 6.104-1(a)(4)):

10 U.S.C. 3204(a)(2), Unusual and compelling urgency.

V. Rationale for Use of Authority (RFO 6.104-1(a)(5)):

[REDACTED]

[REDACTED]

Baxter Aerospace is the vendor that can promptly and properly manufacture, deliver and sustain the TACKits that the USAF needs to [REDACTED]. Baxter is uniquely qualified for this effort because they are the original vendor of the TACKit system. Baxter has already co-developed, tested, and qualified the TACKit for [REDACTED] under Contract [REDACTED]. Baxter installed the [REDACTED]. [REDACTED] Baxter has also participated in site surveys for [REDACTED] and developed a TACKit design for [REDACTED]. Baxter has started planning for prototype installations on [REDACTED]. At award, Baxter was already positioned to deliver kits for installation on aircraft within weeks.

Competing the USAF's urgent requirement to provide TACKits for [REDACTED] supporting Operation Epic Fury is expected to take [REDACTED]. Additionally, awarding the urgent requirement for [REDACTED] to a new vendor is expected to cause an untenable delay of [REDACTED] to re-work the design and airworthiness milestones that Baxter has already achieved through its existing awarded contracts with the USAF. Additionally, awarding the urgent requirement for [REDACTED] to a new vendor is expected to result in an unacceptable [REDACTED] delay to re-accomplish the design, which Baxter is already prepared to prototype. Therefore, to fulfill the USAF's unusually urgent requirement and avoid unacceptable delays in delivery of operational TACKits to [REDACTED], the USAF must continue the development, prototyping, and production that Baxter has already accomplished.

VI. Integrated Market Analysis and Efforts to Solicit Competition (RFO 6.104-1(a)(6), (8), and (10)):

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Market research for this effort was based on the two previous TACKit efforts issued to Baxter through [REDACTED]. Both of these efforts were issued to Baxter, sole source, on the basis that Baxter was the only known source that could provide both support engineering design and manufacture of the TACKit installation, as well as maintain the [REDACTED] for the duration of the program. Baxter co-developed, tested and qualified TACKit for [REDACTED]. These previous efforts led to the conclusion that Baxter was the only source that could meet the urgency of this requirement for [REDACTED] because any other source would have to perform the re-work that Baxter had already accomplished under these previous contracts.

VII. Determination of Fair and Reasonable Cost (RFO 6.104-1(a)(7)):

The Contracting Officer is responsible for evaluating, determining, and documenting the anticipated contract cost/price is fair and reasonable in accordance with RFO Subpart 15.4, Contract Pricing.

VIII. Any Other Facts Supporting the Justification (RFO 6.104-1(a)(9)):

The approval of this J&A will save warfighter lives by [REDACTED]

[REDACTED] Baxter Aerospace is the only vendor with the technology, platform experience, and appropriate staffing to immediately assist USAF during Operation Epic Fury.

IX. Actions to Overcome Barriers to Competition (RFO 6.104-1(a)(11)):

AFLCMC/C3BM, Airborne Connectivity Branch, recently took responsibility for TACKit requirements across all USAF platforms and initiated a sources sought synopsis, posted [REDACTED] as part of a planned multi-platform acquisition effort. The sources sought synopsis closed on [REDACTED] and yielded 12 responses. The Airborne Connectivity Branch will continue its market research to support a competitive acquisition strategy for long-term TACKit requirements beyond the urgent [REDACTED]

Furthermore, the DAF has a program of record to advance the technology of [REDACTED]. The DAF will continue competitive efforts for long-term [REDACTED]